

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Senior District Judge Richard P. Matsch**

Date: August 11, 2014
Courtroom Deputy: J. Chris Smith
FTR Technician: Kathy Terasaki

Civil Action No. 11-cv-00767-RPM

DR. GEORGE FREY, M.D., a Colorado Citizen,

Plaintiff,

Stanley M. Gibson
Ian R. Walsworth
David Kellis

v.

WARSAW ORTHOPEDIC, INC., an Indiana corporation, and
MEDTRONIC SOFAMOR DANEK USA, INC., a Tennessee Corporation, Nimalka R. Wickramasekera
Sharre S. Lotofollahi

Defendants.

COURTROOM MINUTES

Trial to Jury Day Six

8:45 a.m. Court in session.

Plaintiff George Frey and defendants' client representative Anthony Melkint are present.

Court comments regarding parties' Joint Stipulation for Dismissal of Action with Prejudice [194] and advises counsel that it will impose jury costs.

ORDERED: Jury costs imposed in the amount of \$4,950.76 to be paid equally between plaintiff and defendants payable to the Clerk of the Court.

Order Dismissing Case with Prejudice signed.

8:52 a.m. Court in recess.

9:02 a.m. Court in session.

Jurors present.

Court informs jury that the parties have settled the case.

Court's comments to the jurors.

Court thanks jurors for their service.

Jury discharged.

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Court comments to counsel.

Stipulation and Order Regarding Custody of Exhibits and Depositions signed.

9:11 a.m. Court in recess.

Clerk's Note: Exhibits and depositions returned to counsel.

Trial continued. Total time: 16 min.